



# Request for Tender Head Document

CSIORFT2026019 - Ground  
Maintenance Services for  
CSIRO Managed Sites VIC  
Metro

|                       |                                                                          |
|-----------------------|--------------------------------------------------------------------------|
| ISSUE DATE            | 16 July 2026                                                             |
| CLOSING TIME AND DATE | 17 August 2026 2:00pm AEST                                               |
| LODGEMENT             | Tenders must be lodged in accordance with the requirements at clause 3.8 |
| CSIRO CONTACT OFFICER | CSIRO Contact Officer details are provided at clause 3.3                 |

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# 1 CSIRO

## 1.1 About us

- 1.1.1 CSIRO is Australia's national science agency and innovation catalyst. We are Australia's most trusted research institution and most connected innovator, working with every Australian university, government department and major Australian industry. As one of the largest and most multidisciplinary mission-driven research organisations in the world, we unlock a better future for everyone.
- 1.1.2 We have talented people working out of centres in Australia and internationally. We play a vital role in enhancing collaboration within the Australian national innovation system, and as a trusted advisor to government, industry and the community. Our people are focused on delivering the greatest national benefit.
- 1.1.3 CSIRO's purpose is to deliver the science Australians need for the nation they want – productive, sustainable, healthy and secure. CSIRO staff undertake and assist research in Australia and overseas, focusing on providing new ways to contribute to the economic and social performance of our industries, and to improve our quality of life.

## 1.2 Structure

- 1.2.1 CSIRO is an Australian Government Corporate Commonwealth Entity (CCE), with a Board and Chief Executive, constituted and operating under the provisions of the Science and Industry Research Act 1949, which sets out our functions and powers, as well as those of our Minister, Board and Chief Executive. The governance, performance and accountability of our operations, including the use and management of public resources are set out in the *Public Governance, Performance and Accountability Act 2013* (PGPA Act) and related rules. Further information about CSIRO is at:

<https://www.csiro.au/en/about/We-are-CSIRO>

## 1.3 Our strategy, objectives and values

- 1.3.1 CSIRO's strategy reflects the role CSIRO plays in benefitting the society and supporting Australia's national interests. It reflects the priorities outlined by the Minister and the requirements of CSIRO in the Science and Industrial Research Act 1949. It sets the course to achieve our purpose and realise our vision. It articulates the challenges we are solving, objectives and key initiatives that will enable us to deliver, and our values, which underpin everything we do.
- 1.3.2 CSIRO seeks to engage with Respondents who align with CSIRO's objectives:
  - a. **Drive science and technology for impact:** Conduct impact-driven science and research that addresses Australia's challenges in 6 research areas:
    - i. Energy and Minerals
    - ii. Food and Fibre
    - iii. From Wonder to Discovery
    - iv. One Health
    - v. Tech Economy.
  - b. **Steward research infrastructure:** Provide access to fit-for-purpose research infrastructure containing state-of-the-art facilities and equipment.

- c. **Connect science and innovation to society:** Enhance the productivity and long-term competitiveness of Australia's innovation system by bridging the gap between community, science and industry.
- d. **Create an enduring and empowered CSIRO:** Create a sustainable and adaptable organisation with a vibrant, diverse and safe culture that attracts and retains exceptional people.

1.3.3 Our values infuse everything we do, guiding our behaviours and decision making. They articulate how we work every day to deliver our strategy. CSIRO also seeks to engage with Respondents who align with CSIRO's Values:

- a. **People first:** Our first priority is the safety and wellbeing of our people. We believe in, and respect, the power of diverse perspectives. We seek out and learn from our differences. We do our very best to get this right.
- b. **Making it real:** We do science with real impact. We thrive when taking on the big challenges facing the world. We take educated risks and defy convention. We celebrate successes and failures, leveraging them to learn as we strive to be the force for positive change.
- c. **Trusted:** We are driven by purpose but remain objective. We fight misinformation with facts. We earn trust through everything we do. We trust each other and we hold each other accountable. Together, our actions drive Australia's trust in CSIRO and science.
- d. **Further together:** We achieve more together than we ever could alone. We listen and collaborate in teams, across disciplines and across boundaries. We embrace ambiguity and use discussion and persistence to generate unique solutions to complex problems.

## 2 Definitions and Interpretation

2.1.1 In this Request for Tender (RFT), unless the context otherwise requires, the following terms shall have the following meanings:

| TERMS                                        | MEANINGS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Addendum</b>                              | A notice issued after the Issue Date and before the RFT Closing Time and Date.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Asbestos</b>                              | A friable silicate mineral having an asbestiform habit including actinolite asbestos, grunerite (or amosite) asbestos (brown), anthophyllite asbestos, chrysotile asbestos (white), crocidolite asbestos (blue) and tremolite asbestos.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>AusTender</b>                             | AusTender is the Australian Government's online tendering system located at <a href="https://www.tenders.gov.au">https://www.tenders.gov.au</a> .                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Australian or New Zealand business</b>    | <p>An Australian business is -</p> <ul style="list-style-type: none"> <li>a business, including any parent business, that: <ul style="list-style-type: none"> <li>has 50% or more Australian ownership, or is principally traded on an Australian equities market; and</li> <li>is an Australian resident for tax purposes; and</li> </ul> </li> <li>a business that has its principal place of business (the main place in the world where the business is run from) in Australia. This location (that is, the main place the business is run from) must be a street address in Australia.</li> </ul> <p>A New Zealand business – as defined in New Zealand's Government Procurement Rules, available at <a href="http://www.procurement.govt.nz">www.procurement.govt.nz</a><br/>Further guidance is available at the following link:<br/><a href="https://www.finance.gov.au/government/procurement/defining-australian-business-commonwealth-procurement/guidance-definition-australian-or-new-zealand-business">https://www.finance.gov.au/government/procurement/defining-australian-business-commonwealth-procurement/guidance-definition-australian-or-new-zealand-business</a></p> |
| <b>Commonwealth Supplier Code of Conduct</b> | <p>The Commonwealth Supplier Code of Conduct (Code) outlines the Commonwealth's minimum expectations of suppliers and their subcontractors while under contract with the Commonwealth. Further information can be found at:</p> <p><a href="https://www.finance.gov.au/government/procurement/commonwealth-supplier-code-conduct/commonwealth-supplier-code-conduct">https://www.finance.gov.au/government/procurement/commonwealth-supplier-code-conduct/commonwealth-supplier-code-conduct</a></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Confidential Information</b>              | <p>all information disclosed in any form or medium that:</p> <ol style="list-style-type: none"> <li>is designated as confidential; or</li> <li>is by its nature confidential; or</li> <li>the other party knows or ought to know is confidential,</li> </ol> <p>but does not include information that is or becomes public knowledge otherwise than by a breach of any confidentiality obligation.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Conflict of Interest</b>                  | Any matter, circumstance, interest, or activity affecting the Tenderer (including the officers, employees, agents and sub-contractors of the Tenderer) which may or may appear to impair the ability of the Tenderer to provide the requirements to CSIRO diligently and independently.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

| TERMS                           | MEANINGS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Contract</b>                 | The Contract or Deed of Standing Offer (Deed) substantially in the form at <b>Attachment C - Draft Contract</b> of this RFT entered into between CSIRO and the Preferred Tenderer/s.                                                                                                                                                                                                                                                                                                                                                                    |
| <b>CSIRO</b>                    | The Commonwealth Scientific and Industrial Research Organisation.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>CSIRO Business Day</b>       | Monday to Friday, excluding weekend, public holidays (for the state in which the services are provided) and the CSIRO Shutdown Period.                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>CSIRO Contact Officer</b>    | The person or persons nominated at clause 3.3.1 to represent CSIRO during the term of this RFT process.                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>CSIRO Shutdown Period</b>    | CSIRO's shutdown period between Christmas and New Year.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Day</b>                      | Means a business day, Monday to Friday, and excludes weekends, public holidays (for the state in which the services are provided).                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Exploitation</b>             | Engaging labour through slavery, bonding, indenture or other forms of compulsion.                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>First Tier Subcontractor</b> | means an entity that the Tenderer proposes to directly contract with under a Subcontract                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Goods</b>                    | The Goods (substantially as outlined at <b>Attachment A - SOR</b> (Statement of Requirements) referred to in this RFT to be supplied by the Preferred Tenderer/s or under a Contract and/or Deed.                                                                                                                                                                                                                                                                                                                                                       |
| <b>Information</b>              | Any information issued or to be issued by or on behalf of CSIRO in relation to or in connection with the Tender process.                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Issue Date</b>               | The date CSIRO publicly notifies this RFT, via lodgement through AusTender.                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Late Tender</b>              | A Tender that is not lodged by the RFT Closing Time and Date, as further defined in clause 5.5, Late Lodgement Policy.                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Modern Slavery</b>           | As defined in the <a href="#">Commonwealth Modern Slavery Act 2018</a>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Preferred Tenderer</b>       | A Tenderer/s that have satisfied the Tender Evaluation Panel that its Tender satisfies all selection criteria and represents best value for money for CSIRO. A Preferred Tenderer may be requested to commence negotiations with CSIRO, with a view to entering into a Contract with CSIRO for the tendered Goods and/or Services. CSIRO reserves the right to negotiate with any Tenderer and may set aside the Preferred Tenderer's Tender at any time and on such conditions as it deems appropriate (see Clause 6.11, Negotiations with Tenderers). |
| <b>Pricing Tables</b>           | The tables in the Microsoft Excel workbook provided as an annexure to the Tender Response Schedules for the purpose of submitting pricing information for this RFT.                                                                                                                                                                                                                                                                                                                                                                                     |

| TERMS                                                | MEANINGS                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Procurement Connected Policy – Shadow Economy</b> | means the ‘Procurement Connected Policy - <i>Shadow economy - increasing the integrity of government procurement</i> ’. Additional information in relation to the Procurement Connected Policy is available at:<br><a href="https://www.finance.gov.au/government/procurement/buying-australian-government/procurement-connected-policies">https://www.finance.gov.au/government/procurement/buying-australian-government/procurement-connected-policies</a> |
| <b>Related Body Corporate</b>                        | Has the meaning set out in <a href="#">the Corporations Act 2001 (Cth)</a>                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>Relevant Employer</b>                             | As defined in <a href="#">the Workplace Gender Equality Act 2012 (Cth)</a>                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>RFT</b>                                           | This Request for Tender.                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>RFT Closing Time and Date</b>                     | The final time and date for lodgement of Tenders as provided by Clause 5.4, RFT Closing Time and Date.                                                                                                                                                                                                                                                                                                                                                       |
| <b>RFT Conditions</b>                                | The RFT conditions set out in these RFT Documents.                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>RFT Documents</b>                                 | All, or any of, the documents referred to in, clause 3.1, RFT Documents of these RFT Conditions.                                                                                                                                                                                                                                                                                                                                                             |
| <b>RFT Rules</b>                                     | The same meaning as RFT Conditions.                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>Satisfactory</b>                                  | means meets the conditions set out in Part 6.b of the Shadow Economy Procurement Connected Policy or, if the circumstances in Part 6.c of the Shadow Economy Procurement Connected Policy apply, the conditions set out in Part 8.b of the Shadow Economy Procurement Connected Policy.                                                                                                                                                                      |
| <b>Services</b>                                      | The Services (substantially as outlined at <b>Attachment A - SOR</b> (Statement of Requirements) referred to in this RFT to be carried out by the Preferred Tenderer/s under a Contract and/or Deed.                                                                                                                                                                                                                                                         |
| <b>Shadow Economy Procurement Connected Policy</b>   | means the ‘Procurement Connected Policy - Shadow economy - increasing the integrity of government procurement’ available at <a href="https://treasury.gov.au/publication/p2019-t369466">https://treasury.gov.au/publication/p2019-t369466</a> .                                                                                                                                                                                                              |
| <b>Small and Medium Enterprises (SME)</b>            | an Australian or New Zealand firm with fewer than 200 full-time equivalent employees. When assessing the number of employees a firm has, employees of associated entities (as defined in s 50AAA of the <i>Corporations Act 2001</i> ) to a firm are included. Associated entities to a firm include a firm’s parent company, a firm’s subsidiaries, and any related bodies corporate of the firm.                                                           |
| <b>Statement of Tax Record (STR)</b>                 | A Statement of Tax Record, requested from the Australian Taxation Office, and provided only by such a request. The statement indicates whether or not the tax record is satisfactory based on certain conditions. Further guidance can be found at:<br><a href="https://www.ato.gov.au/Business/Bus/Statement-of-tax-record/?page=1#Requesting_an_STR">https://www.ato.gov.au/Business/Bus/Statement-of-tax-record/?page=1#Requesting_an_STR</a> .           |
| <b>Supplier</b>                                      | the Supplier awarded the Contract (if any) as an outcome of this RFT.                                                                                                                                                                                                                                                                                                                                                                                        |



| TERMS                                  | MEANINGS                                                                                                                                                                                                                                                                                                                                                                       |
|----------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Supply Chain</b>                    | All stages of manufacture of the Goods whether or not those stages were done by the Supplier or third parties and includes all aspects of the manufacture including any components and packaging.                                                                                                                                                                              |
| <b>Sustainable Procurement</b>         | An opportunity to provide more value to an organisation by improving productivity, assessing value and performance, enabling communication between purchasers, suppliers and stakeholders, and by encouraging innovation. It is procurement that has the most positive environmental, social and economic impacts possible across the entire life cycle of goods and services. |
| <b>Tender</b>                          | A written submission in response to this RFT by a Tenderer made in accordance with these RFT Conditions.                                                                                                                                                                                                                                                                       |
| <b>Tender Price</b>                    | The fee submitted by the Tenderer/s to undertake the Goods and/or Services subject to these RFT Documents and will form the basis of fees payable under any Contract.                                                                                                                                                                                                          |
| <b>Tender Response Schedules (TRS)</b> | The response sections at <b>Attachment B - TRS</b> (Tender Response Schedules) of this RFT.                                                                                                                                                                                                                                                                                    |
| <b>Tenderer</b>                        | A Tenderer who submits a Tender in accordance with these RFT Conditions.                                                                                                                                                                                                                                                                                                       |
| <b>Valid</b>                           | means valid in accordance with Part 7.e of the Shadow Economy Procurement Connected Policy.                                                                                                                                                                                                                                                                                    |
| <b>WGE Act</b>                         | <a href="#"><i>Workplace Gender Equality Act 2012 (Cth)</i></a>                                                                                                                                                                                                                                                                                                                |

2.1.2 All other terms used in this RFT have the same meaning as defined in **Attachment C - Draft Contract**.

2.1.3 In these RFT Conditions, unless the context otherwise requires:

- a. a reference to a section is to a section of these conditions
- b. a reference to a clause is to a clause of these conditions
- c. a reference to a schedule or annexure is a reference to a schedule or annexure to these conditions
- d. words in the singular include the plural and vice versa
- e. words importing one gender include all other genders
- f. a reference to a statute, ordinance, code or other law, includes regulations and other instruments under it and all consolidations, amendments, re-enactments or replacements of any of them
- g. a reference to any person includes a reference to a body corporate or government authority or agency and
- h. all prices and sums of money shall be in Australian dollars.

2.1.4 Headings are included in these conditions for reference purposes only and have no effect in limiting or extending the language of the part, section or clause to which they refer.

2.1.5 These RFT Conditions will be governed by, and construed in accordance with, the laws for the time being, in force in the Australian Capital Territory. The courts of the Australian Capital Territory have non-exclusive jurisdiction to decide any matter arising out of this RFT.

- 2.1.6 Where a word or phrase is given a defined meaning in these conditions, any other part of speech or other grammatical form in respect of such word or phrase shall, unless the context otherwise requires, have a corresponding meaning.

## 3 Request for Tender

### 3.1 Request for Tender Documents

- 3.1.1 This RFT and the Attachment/s set out all of the details concerning CSIRO's requirements in relation to the Goods and/or Services, conditions of tendering, evaluation criteria and all other matters concerning this process.
- 3.1.2 The structure of the RFT documents is as follows:

#### Request for Tender Head Document

|                     |                                 |
|---------------------|---------------------------------|
| <b>Attachment A</b> | SOR (Statement of Requirements) |
| <b>Attachment B</b> | TRS (Tender Response Schedules) |
| <b>Annexure A</b>   | Pricing Response Schedule       |
| <b>Attachment C</b> | Draft Contract                  |

### 3.2 About this Request for Tender

- 3.2.1 This RFT is to select a Supplier for the Goods and/or Services as specified in **Attachment A -SOR** (Statement of Requirements). This RFT is an invitation to treat and shall not be construed, interpreted, or relied upon, whether expressly or impliedly, as an offer capable of acceptance by any professional, firm or organisation or as creating any form of contractual, quasi-contractual, restitutionary or other relationship.
- 3.2.2 Nothing in this RFT will be construed to create any binding contract (express or implied) between CSIRO and any Tenderer until a written Contract, if the parties enter into any, is executed substantially in the form of the **Attachment C- Draft Contract**.

### 3.3 Queries and Addenda

- 3.3.1 Tenderers should direct any queries arising from this RFT to the CSIRO Contact Officer:

|                                   |                                                                      |
|-----------------------------------|----------------------------------------------------------------------|
| <b>CSIRO Contact Officer Name</b> | Procurement Officer                                                  |
| <b>Email</b>                      | <a href="mailto:CSIORFT2026019@csiro.au">CSIORFT2026019@csiro.au</a> |

- 3.3.2 All such queries are to be directed to the CSIRO Contact Officer **via email only**. Telephone enquiries will not be taken.

### 3.4 Clarifications

- 3.4.1 Clause 3.5, **excludes** queries and requests for technical or operational support relating to downloading or accessibility for RFT documentation from the AusTender system. Queries and requests for technical or operational support must be directed to the AusTender Help Desk as per clause 3.8.7.

### 3.5 Clarification Questions

- 3.5.1 Tenderers may seek clarification of the meaning of the content of this RFT from CSIRO's Contact Officer at any time prior to the Closing Date for clarifications as outlined in clause 5.3.1. All enquiries must be in writing submitted to CSIRO's Contact Officer Email as identified at clause 3.3.1.
- 3.5.2 If clarifications are received after the Closing Date of Clarifications as outlined in Clause 5.3.1, CSIRO will, in its sole discretion, determine whether or not to respond to such questions. Any election not to respond will be notified to the Tenderer asking the question.
- 3.5.3 In all cases CSIRO reserves the right to forward any clarification of the meaning of the content of this RFT to all Tenderers on a non-attributable basis without disclosing the source of the questions.
- 3.5.4 If a Tenderer believes it has found a discrepancy, error, ambiguity, inconsistency or omission in this RFT or any other information given or made available by CSIRO, the Tenderer should promptly notify the CSIRO Contact Officer setting out the error in sufficient detail so that CSIRO may take the corrective action, if any, it considers appropriate.
- 3.5.5 If a question by a Tenderer reveals new information that, in the sole opinion of CSIRO may be material to the outcome of the RFT process, or such questioning reveals an error in information previously distributed by CSIRO, the new or corrected information will be distributed to all Tenderers in accordance with clause 3.6, RFT Modification Procedure.

### 3.6 RFT Modification Procedure

- 3.6.1 CSIRO may, in its absolute discretion, issue modifications to this RFT. Such modifications may include variations to the RFT or additional information in relation to the RFT.
- 3.6.2 If CSIRO elects to issue modifications to the RFT prior to the RFT Closing Time and Date, CSIRO will issue a formal addendum to the RFT via the AusTender website. An electronic advice will be issued automatically by AusTender to all Tenderers correctly registered as having downloaded the RFT. Tenderers should ensure their AusTender registration details are correct for this purpose.
- 3.6.3 All conditions and rules of this RFT will apply to all addenda unless modified by the addenda. Any such addenda will become part of the RFT.

### 3.7 Complaints

- 3.7.1 Any complaints arising out of this RFT process should be directed to the Complaints Officer:

|                                 |                                                                                                                                                                                                                                                                        |
|---------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Complaints Officer              | General Complaints - Executive Manager, Strategic Procurement<br>Complaints under the <i>Government Procurement (Judicial Review) Act 2018</i> (GPJR Act) - Probity Advisor, Governance                                                                                |
| Business Area                   | CSIRO Finance                                                                                                                                                                                                                                                          |
| Email                           | General Complaints: <a href="mailto:Procurement@csiro.au">Procurement@csiro.au</a><br>GPJR Act Complaints: <a href="mailto:ProcurementComplaints@csiro.au">ProcurementComplaints@csiro.au</a> and <a href="mailto:generalcounsel@csiro.au">generalcounsel@csiro.au</a> |
| Address for GPJR Act Complaints | Probity Advisor c/- General Counsel,<br>CSIRO Discovery Centre, Clunies Ross Street, Black Mountain ACT 2601.<br>GPO Box 1700 ACT 2601.                                                                                                                                |

- 3.7.2 All such queries are to be directed to the Complaints Officer preferably by **email only** but must be in writing either to the above address or email address. Telephone enquiries will not be taken.

## 3.8 AusTender Terms and Conditions

- 3.8.1 CSIRO is conducting this RFT process using the Australian Government Tender System (AusTender) facility. AusTender is the Australian Government's procurement information system. Access to and use of AusTender is subject to terms and conditions. In participating in this RFT process, Tenderers must comply with those terms and conditions and any applicable instructions, processes, procedures and recommendations as advised on AusTender at:

<https://www.tenders.gov.au/?event=public.termsOfUse>.

- 3.8.2 The RFT has been published on the AusTender website and Tenderers should register their contact details and download the RFT from this website, even if a copy of the RFT has been obtained from other sources.

<https://www.tenders.gov.au>

- 3.8.3 Only Tenderers who have registered on the AusTender website will be advised of any alteration, correction or notice in relation to this RFT. All alterations, corrections and notices will be made available on AusTender.

- 3.8.4 CSIRO accepts no responsibility if a Tenderer fails to become aware of any alteration, correction or notice, which would have been apparent from a visit to the AusTender website or from other information available from the CSIRO Contact Officer.

- 3.8.5 Tenderers must inform themselves concerning all security measures and other aspects of the AusTender technical environment. Tenderers must make their own assessment of the AusTender system prior to using it for any matter related to this RFT and no responsibility will be accepted by CSIRO arising in respect of any use or attempted use by any party of AusTender.

- 3.8.6 Scanned images of signed and/or initialled pages within the Tender, including Statutory Declarations and Deeds, where they are required, are permitted so long as the total file size does not exceed the 5-megabyte limit.

- 3.8.7 All queries and requests for technical or operational support must be directed to the AusTender Help Desk. Contact details for the AusTender Help Desk are:

Telephone: 1300 651 698

Email: [tenders@finance.gov.au](mailto:tenders@finance.gov.au)

- 3.8.8 The AusTender Help Desk is available between 9am and 5pm (ACT Local Time), Monday to Friday (excluding ACT and national public holidays).

## 4 Acknowledgment and Disclaimer

### 4.1 Right Not to Proceed

- 4.1.1 CSIRO is not bound contractually, or in any other way to the Tenderers who respond to this RFT. CSIRO reserves the right not to proceed with this RFT or any part of it, and to suspend or vary the RFT and/or its requirements at any stage.

### 4.2 Costs Borne by Tenderer

- 4.2.1 All costs and expenses incurred by Tenderers in any way associated with the development, preparation and submission of the Tender response, including but not limited to attendance at meetings, discussions, presentations and providing any additional material required by CSIRO, will be borne exclusively by the Tenderers.

### 4.3 No Legal Relationship

- 4.3.1 No binding legal relationship will arise out of this process until execution of a contract with the Preferred Tenderer.

### 4.4 Information

- 4.4.1 The statements, opinions, projections, forecasts or other information contained in this RFT may change. Where any such information relates to future matters, no steps have been taken to verify that the information is based upon reasonable grounds, and no representation or warranty, expressed or implied, is made by CSIRO, or any of its officers, employees, advisers or agents that the statements contained in this RFT will be achieved.
- 4.4.2 This RFT is designed to reflect and summarise the information concerning the Goods and/or Services only and is not a comprehensive description of them.
- 4.4.3 Except as required by law, and only to the extent so required, neither CSIRO, nor its respective agents or advisers will in any way be liable to any person or body for any loss, damage, cost and expense of any nature arising in any way out of or in connection with the statements, opinions, projections, forecasts or other representations, actual or implied, contained in or omitted from this RFT or other information provided to any Tenderer or by reason of any reliance thereon by any person or body.
- 4.4.4 Any time and/or date in this RFT is for the sole convenience of CSIRO. The establishment of a time and/or date in this RFT does not create an obligation on the part of CSIRO to take any action or any right in any Tenderer that any action is taken on the date established. CSIRO may change any time or date. CSIRO will notify affected Tenderers if it changes the time and/or date but will not be obliged to provide any reasons for its actions.

### 4.5 Tenderers to Inform Themselves

- 4.5.1 Tenderers are considered to have:
- examined this RFT, any documents referenced in this RFT, and any other information made available by CSIRO to Tenderers for the purpose of responding
  - examined all further information which is obtainable by the making of reasonable inquiries relevant to the risks, contingencies, and other circumstances having an effect on their Tender response

- c. undertaken their own professional advice in respect of this RFT, any other information provided to Tenderers and the RFT process generally, as appropriate
- d. satisfied themselves as to the correctness and sufficiency of their Tender response including submitted prices and
- e. satisfied themselves as to the terms and conditions of the Draft Contract and its ability to comply with the Draft Contract.

## 4.6 Tenderer Acknowledgements

4.6.1 Responses are submitted on the basis that Tenderers acknowledge:

- a. they do not rely on any representation, letter, document or arrangement, whether oral or in writing, or other conduct as adding to or amending these conditions other than amendments in accordance with clause 3.6, RFT Modification Procedure
- b. they do not rely upon any warranty or representation made by or on behalf of CSIRO, except as are expressly provided for in this RFT, but they have relied entirely upon their own inquiries and inspection in respect of the subject of their Tender response.

## 4.7 Rights of CSIRO

4.7.1 Without limiting any other rights contained in this RFT, CSIRO may do any or all of the following at any time:

- a. not proceed with the RFT process where:
  - i. it is not in the public interest
  - ii. no Tenderer satisfies the Conditions for Participation, Minimum Content and Format requirements or Mandatory Requirements or
  - iii. no Tenderer represents value for money
- b. suspend, defer or change the structure and timing of the RFT
- c. determine at any time a short list of Tenderers
- d. seek amended Tenders or call a new RFT
- e. forward any clarification about this RFT to all known Tenderers on a non-attributable basis and without disclosing any Confidential Information of a Tenderer
- f. allow or not allow another legal entity to take over a Tender response in substitution for the original Tenderer where an event occurs that has the effect of substantially altering the composition or control of the Tenderer or the business of the Tenderer
- g. negotiate with one or more persons who have not submitted Tender responses or enter into a contract or other binding relationship for similar Goods and/or Services to the Goods and/or Services outside of this RFT process and/or
- h. terminate any negotiations being conducted at any time with the Tenderers.

## 4.8 Disclaimer

4.8.1 This RFT is an invitation to treat and is not to be taken to be or relied upon as an offer capable of acceptance by any person or as creating any form of contractual (including a process contract), quasi contractual, restitutionary or promissory estoppel rights, or rights based on similar legal or equitable grounds.

- 4.8.2 CSIRO will not be liable to any Tenderer on the basis of any promissory estoppel, quantum meruit or other contractual, quasi contractual or restitutionary grounds whatsoever or in negligence as a consequence of any matter relating or incidental to a Tenderer's participation in this RFT including instances where:
- a. a Tenderer is not invited to participate in any subsequent process following completion of this RFT process
  - b. CSIRO varies the RFT
  - c. for reasons of public interest, CSIRO decides to terminate this RFT or not to contract for all or any of the requirements or
  - d. CSIRO exercises or fails to exercise any of its other rights under or in relation to this RFT.

## 4.9 Acceptance of Request for Tender Conditions and Rules

- 4.9.1 By submitting a Tender in response to this RFT, the Tenderer accepts the Acknowledgements, Disclaimers and Conditions of Tender, as set out in this RFT.



## 5 Conditions of Tender

### 5.1 Conditions for Participation

- 5.1.1 Subject to clause 5.7, Unintentional Errors of Form, CSIRO will exclude a Tenderer from further consideration and evaluation if CSIRO considers in its absolute discretion that the conditions for participation set out in this clause have not been met by the Tenderer. Notwithstanding anything else contained in this RFT, only requirements listed in this clause will be deemed conditions for participation.
- a. the Tenderer exists as a legal entity at the RFT Closing Time and Date
  - b. at the time of lodgement of their Tender, Tenderers must **not** have been:
    - i. precluded from tendering for Australian Government funded work or
    - ii. subject to a judicial decision against them relating to employee entitlements (not including decisions under appeal, and have not paid the claim
  - c. where the Tenderer is a Relevant Employer, the Tenderer is compliant with its obligations under the *Workplace Gender Equality Act 2012* (Cth) (the WGE Act). Further information may be found at <http://www.wgea.gov.au/>
  - d. the Tenderer must comply with all Mandatory Requirements identified in the **Attachment A - SOR** (Statement of Requirements).

### 5.2 Minimum Content and Format Requirements

- 5.2.1 Subject to clause 5.7, Unintentional Errors of Form, CSIRO will exclude a Tenderer from further consideration if CSIRO considers in its absolute discretion that the Tenderer's response does not meet the minimum content and format requirements listed in this clause. Notwithstanding anything else contained in this RFT, only requirements listed in this clause will be deemed minimum content and format requirements for the purposes of this RFT.
- a. The Tender must be lodged electronically via AusTender, the Australian Government Tendering System, in accordance with, clause 3.8, AusTender Terms and Conditions
  - b. The Tenderer must complete and submit in their Response the:
    - i. Tenderer's Deed Poll, substantially in the form at *Schedule 10*, as set out in **Attachment B - TRS** (Tender Response Schedules).
  - c. Noting the requirement at clause 5.2.1 b, Tenderers should substantially complete all remaining schedules of **Attachment B - TRS** (Tender Response Schedules), including the RFT Pricing Tables at **Annexure A** in the format provided.
  - d. The Tender, including all attachments and supporting material, must be written in English.
  - e. Alternative solutions will only be considered where the Tenderer also provides in its Tender, a response that conforms to the specified requirements of this RFT.
  - f. Where the Tenderer is a Relevant Employer, the Tenderer must provide evidence as specified in Schedule 3 item 1.3.5 of **Attachment B - TRS** (Tender Response Schedules). Further information can be found at clause 5.8.

### 5.3 Timetable

- 5.3.1 An indicative timetable for the conduct of this RFT process is described below. The timetable may be amended by CSIRO at any time.

| EVENT                                                                       | INDICATIVE DATES |
|-----------------------------------------------------------------------------|------------------|
| Issue of RFT                                                                | 16 July 2026     |
| Site Visit                                                                  | see Item 5.11    |
| Closing Date for clarifications                                             | 10 August 2026   |
| Evaluation of Tender responses, including seeking clarification as required | August 2026      |
| Negotiate and sign contract with Preferred Tenderer/s                       | September 2026   |
| Implementation begins                                                       | October 2026     |

## 5.4 RFT Closing Time and Date

5.4.1 The RFT Closing Time and Date is:

|                                  |                            |
|----------------------------------|----------------------------|
| <b>RFT Closing Time and Date</b> | 17 August 2026 2:00pm AEST |
|----------------------------------|----------------------------|

5.4.2 Completed Tender responses must be lodged electronically through the AusTender website before the RFT Closing Time and Date in accordance with the RFT Conditions and AusTender Terms and Conditions. The AusTender website is at the following link:

<https://www.tenders.gov.au>

5.4.3 Tenders lodged by any other means, including by hand, facsimile or email, will be considered as non-conforming and will be excluded from this RFT process.

5.4.4 CSIRO recommends that Tenderers allow sufficient time when submitting Responses, in case they encounter any technical issues, especially internet connectivity, to ensure Responses are received prior to the RFT Closing Time and Date.

## 5.5 Late Lodgement Policy

5.5.1 CSIRO will exclude Late Tenders from the RFT process and will not admit them to evaluation. The Tender response is late ('Late Tender') if:

- it is a Late Tender in accordance with the RFT Conditions and/or AusTender Terms and Conditions; or
- it is incomplete as at the RFT Closing Time and Date (including where the Tender response includes electronic files that cannot be read or unencrypted).

5.5.2 However, the Tender response is not a 'Late Tender' where:

- an electronic submission of the Tender response has commenced prior to the RFT Closing Time and Date, and the transmission is completed within the timeframe and rules allowed by AusTender
- the Tender response is late due solely to a mishandling by CSIRO or AusTender, as determined by CSIRO in accordance with clause 5.6, Mishandling of Responses by CSIRO or AusTender.

## 5.6 Mishandling of Responses by CSIRO or AusTender

5.6.1 CSIRO will make a determination as to whether a mishandling has occurred. Where a Tender response is late solely due to mishandling by CSIRO or AusTender, CSIRO will admit it to evaluation.

## 5.7 Unintentional Errors of Form

- 5.7.1 If an unintentional error of form in a Tender is identified prior to award of a contract, CSIRO may in its absolute discretion allow correction of that error by the Tenderer by the submission of a correction, variation or additional information.
- 5.7.2 An unintentional error of form is an error that CSIRO is satisfied in its absolute discretion:
- represents incomplete information not consistent with the Tenderer's intentions and, if relevant, capabilities at the time the Tender was lodged
  - does not materially affect the competitiveness of the Tenderer's response.

## 5.8 Workplace Gender Equality Act 2012 (Cth)

- 5.8.1 Commonwealth Policy prevents CSIRO from entering into contracts with Suppliers who are non-compliant under the Workplace Gender Equality Act 2012 (Cth) (the WGE Act). The Draft Contract requires that, in performing any Contract, a successful Tenderer must:
- comply with its obligations, if any, under the WGE Act, and
  - if the Term of the Contract exceeds 18 months, the successful Tenderer must provide a current letter of compliance from the Workplace Gender Equality Agency within 18 months from the Contract Commencement Date and following this, annually to the CSIRO Contract Manager.
- 5.8.2 Successful Tenderers should note that if during the term of the Contract, the Supplier becomes non-compliant with the WGE Act, the Supplier must promptly notify the CSIRO Contract Manager upon advice of the non-compliance.
- 5.8.3 Tenderers must indicate as part of the Tenderer's response at **Attachment B – TRS** (Tender Response Schedules), whether or not the organisation is a 'Relevant Employer' under the WGE Act and, if applicable, provide a current letter of compliance as part of their Tender, or prior to entering into a Contract.
- 5.8.4 Further information is available at:  
<http://www.wgea.gov.au>

## 5.9 Ownership of Response Material

- 5.9.1 All material submitted in response to this RFT becomes the property of CSIRO. Such intellectual property as may exist in the information contained in the Tender response will remain vested in the Tenderer.
- 5.9.2 By submitting a Tender response, the Tenderer allows CSIRO to copy and do anything necessary to material, including the Tenderer's intellectual property contained in the response, for the purpose of evaluating the Tenderer's response and negotiating a Contract if the Tenderer proceeds to that phase of the process.

## 5.10 Bid and Contract Manager Details

- 5.10.1 Tenderers should nominate, in the completed **Attachment B - TRS** (Tender Response Schedules), one bid manager as a single point of contact through which further discussion or information about the Tender can be coordinated.
- 5.10.2 The bid manager must have authority on behalf of the Tenderer to supply any acknowledgments required in the RFT and to bind the Tenderer, and if a prime contractor, to bind all of its sub-contractors. The bid manager will be required during any contract negotiations (if such negotiations are necessary) and must have the authority to make decisions on behalf of the Tenderer.

- 5.10.3 Further, one representative of the Tenderer should be nominated as the Contract Manager. Tenderers should provide detailed information about the Contract Manager, including curriculum vitae for that person.

## 5.11 Site Visit

- 5.11.1 A Site Visit will be as shown in the table below:

| Site                                                    | Site Address                               | Site Visit Time              |
|---------------------------------------------------------|--------------------------------------------|------------------------------|
| Clayton Precinct (Clayton, Clayton North, Notting Hill) | Main Reception Research Way, Clayton       | 24 July 2026<br>9am – 11am   |
| Aspendale                                               | Main Reception Robertson Parade, Aspendale | 24 July 2026<br>1pm – 2pm    |
| Werribee (Sneydes Rd, South Road)                       | Main Reception 671 Sneydes Rd Werribee     | 27 July 2026<br>10 am – 11am |

- 5.11.2 Attendance at the Site Visit is a mandatory requirement for this RFT.
- 5.11.3 Tenderers will be required to indicate if they intend to attend the Site Visit, by registering via the tender inbox [CSIORFT2026019@csiro.au](mailto:CSIORFT2026019@csiro.au) a minimum of one working days prior. Tenderers are to provide:
- Company Name and ABN
  - Company Tender Point of Contact and contact details
  - Attendee(s) full names, position(s) and email address
- 5.11.4 The purpose of a Site Visit is to provide Tenderers with an opportunity to understand the complexities and logistics of the site.
- 5.11.5 Tenderers should not rely on any statement made at the Site Visit as amending or adding to this RFT unless that amendment or addition is confirmed by CSIRO in writing.
- 5.11.6 CSIRO may conduct security vetting of persons wishing to attend the Site Visit.
- 5.11.7 Further attendance instructions will be provided to registered attendees prior to the event.
- 5.11.8 Individual Site Visits will not be provided.

## 5.12 CSIRO's Confidential Information

- 5.12.1 Information provided to Tenderers by CSIRO in the course of the RFT process (in whatever form) that is marked as confidential, may only be used solely for the purpose of preparing and lodging a Tender.
- 5.12.2 Tenderers must not disclose or otherwise provide any Confidential Information (in whatever form) in connection with this RFT to any person that is not a party to the Tenderer's response without CSIRO's prior written approval.
- 5.12.3 On request at any time, Tenderers must immediately return to CSIRO all copies of any CSIRO Confidential Information provided in the course of the RFT process.
- 5.12.4 Tenderers are required to ensure that any of their employees, agents or sub-contractors involved in meeting CSIRO's requirements do not either directly or indirectly record, divulge or communicate to any person any Confidential Information concerning the affairs of CSIRO or a third party acquired or

obtained in the course of preparing a Tender response, or any documents, data or information provided by CSIRO and which CSIRO indicates to Tenderers is confidential or which Tenderers know or ought reasonably to know is confidential.

## 5.13 Tenderer's Confidential Information

- 5.13.1 CSIRO will treat as confidential, any information provided by a Tenderer, which is clearly marked by the Tenderer as Confidential Information. Tenderers must nominate only those parts of their Tender that are actually confidential.
- 5.13.2 CSIRO's obligations in relation to Tenderer provided Confidential Information will not be taken to have been breached to the extent that the information is:
- disclosed by CSIRO to its advisers, officers, employees, sub-contractors or advisors in order to conduct the RFT process, including the preparation of any resultant contract
  - disclosed to CSIRO's internal management personnel or advisors, solely to enable effective management or auditing of the RFT process
  - disclosed by CSIRO to its Department or to the responsible Minister
  - disclosed by CSIRO in response to a request by a House or a Committee of the Parliament of the Commonwealth of Australia
  - authorised or required by law to be disclosed or
  - in the public domain otherwise than due to a breach of the relevant obligations of confidentiality.

## 5.14 Australian National Audit Office

- 5.14.1 Under the *Auditor-General Act 1997 (Cth)*, the Auditor-General or an authorised person with a right to have, at all reasonable times, access to information, documents and records.
- 5.14.2 In addition to the Auditor-General's powers under the *Auditor-General Act 1997 (Cth)*, if the Tenderer is chosen to enter into a Contract, the Tenderer will be required to provide the Auditor-General or an authorised person, access to information, documents, records and CSIRO assets, including those on the Tenderer's premises. This will be required at reasonable times on giving reasonable notice for the purpose of carrying out the Auditor-General's functions and will be restricted to information and assets which are in the custody or control of the Tenderer, its employees, agents or sub-contractors, and which are related to the Contract. Such access will apply for the term of the Contract and for a period of seven years from the date of expiration or termination.
- 5.14.3 Tenderers should obtain, and will be deemed to have obtained, their own advice on the impact of the *Auditor-General Act 1997 (Cth)* on their participation in the RFT.

## 5.15 Conflict of Interest

- 5.15.1 During the RFT process, the Tenderer must immediately advise CSIRO in writing of any circumstances or relationships constituting an actual, potential or perceived Conflict of Interest in respect to its Tender response, or the Tenderer's obligations under the Contract if the Tenderer is awarded the Contract. CSIRO may in its absolute discretion:
- enter into discussions to seek to address such Conflict of Interest
  - exclude the Tenderer from the process and further evaluation or
  - take any other action it considers appropriate.

## 5.16 Ethical dealing and security, financial and probity checks

- 5.16.1 CSIRO's policy is to engage in the highest standards of ethical behaviour and fair dealing throughout the RFT process. CSIRO requires the same standards from those with whom it deals. Tenderers must compile responses without improper assistance of employees or former employees of CSIRO and without the use of information improperly obtained or in breach of an obligation of confidentiality.
- 5.16.2 Tenderers must not:
- engage in misleading or deceptive conduct in relation to the RFT process
  - engage in any collusive submissions, anti-competitive conduct, or any other unlawful or unethical conduct with any other Tenderer, or any other person in connection with the RFT process
  - attempt to influence improperly any officer, employee or agent of CSIRO, or violate any applicable laws or CSIRO policies regarding the offering of inducements in connection with the RFT process.
- 5.16.3 CSIRO may exclude from consideration any Tender lodged by a Tenderer which, in CSIRO's reasonable opinion, has engaged in any behaviour contrary to this section in relation to the RFT process.
- 5.16.4 CSIRO (or its agents) may perform such security, probity, and financial investigations and procedures as CSIRO may determine are necessary in relation to any Tenderer, its employees, officers, partners, associates, sub-contractors or related entities including consortium members and their officers, employees and sub-contractors.
- 5.16.5 Tenderers should promptly provide CSIRO with such information or documentation that CSIRO requires in order to undertake such investigation. A Tender may be rejected by CSIRO if the Tenderer does not promptly provide, at its cost, all reasonable assistance to CSIRO in this regard or based on the outcomes of the investigations or procedures.
- 5.16.6 The Tenderer warrants that they are not aware of any evidence of Exploitation in its Supply Chain after conducting a reasonable examination of its Supply Chain.
- 5.16.7 CSIRO may also make independent enquiries about any matters that may be relevant to the evaluation of a Tender.

## 5.17 Relevant legislative provisions

- 5.17.1 CSIRO policy is to not to enter into a Contract with Tenderers who have been named in Parliament as not complying with the *Workplace Gender Equality Act 2012* (Cth).
- 5.17.2 CSIRO expects Suppliers to always act in a safe manner and perform all relevant Services in a way that is without risk to the health, safety or welfare of any person and eliminates health and safety risks so far as is reasonably practicable.
- 5.17.3 Tenderers should note the provisions and obligations in the Draft Contract relating to:
- work, health and safety
  - the Commonwealth Supplier Code of Conduct (Code)
- 5.17.4 CSIRO will not enter into a Contract with Tenderers who are listed as designated entity by the Minister of Foreign Affairs by notice in the Gazette under s 15 of the *Charter of the United Nations Act 1945* (Cth) or who intend to engage sub-contractors who are listed as a designated entity by the Minister for Foreign Affairs by notice in the Gazette under s 15 of the *Charter of the United Nations Act 1945* (Cth). A consolidated list of such persons, entities and associated assets is maintained by the Department of Foreign Affairs and Trade under the *Charter of the United Nations (Dealing with Assets) Regulations 2008* and can be found at <https://www.dfat.gov.au/international-relations/security/sanctions/Pages/consolidated-list>

- 5.17.5 CSIRO will not enter into a Contract with Tenderers engaging illegal workers. For more information refer to:

<https://immi.homeaffairs.gov.au/visas/working-in-australia>

## 5.18 Offer Period

- 5.18.1 All Tender Responses are to be valid for a period of 180 days from the RFT Closing Time and Date (Offer Period).

## 5.19 Contract Nature

- 5.19.1 The aim of this RFT is to engage a qualified Supplier for the Goods and/or Services outlined at **Attachment A - SOR** (Statement of Requirements) and in accordance with the Contract.
- 5.19.2 The Preferred Tenderer will be required to enter into a Contract for three (3) years, with the provision to extend for two (2) years.

## 5.20 Part Offer

- 5.20.1 CSIRO will NOT accept responses that deal with only part of the Statement of Requirement.

## 5.21 Consortium Bids

- 5.21.1 CSIRO will NOT accept consortium Tender responses for this RFT.

## 5.22 No Joint Contracting

- 5.22.1 CSIRO will not accept Tenders from Tenderers (including a consortium) that propose to contract jointly with CSIRO.

## 5.23 Alternative Tenders

- 5.23.1 CSIRO may, at its discretion, consider a Tender that does not comply fully with Attachment A - Statement of Requirements (Alternative Tender) only if the Tenderer:
- also provides a Tender that fully conforms to the requirements in the Statement of Requirements
  - proposes a solution that satisfies the functional requirements of the Statement of Requirements
  - is otherwise a complete Tender
  - fully describes the advantages, disadvantages, limitations and risks of the alternative approach
  - includes sufficient information to enable a comparison of the alternative tender with tenders that comply with the Statement of Requirements.



## 6 Evaluation Process

### 6.1 Evaluation Objective

- 6.1.1 The purpose of the evaluation process is to identify and select the Tenderer/s that represents the best value for money (VFM) to CSIRO, consistent with the Commonwealth Procurement Rules (CPRs) and CSIRO procurement standards and procedures.
- 6.1.2 Tenders will be assessed in accordance with the evaluation criteria and methodology adopted by CSIRO to determine best VFM. VFM is a comprehensive assessment that takes into account both cost represented by the assessment of price and value represented by technical assessment in the context of the risk profile presented by each Tender, including any request by a Tenderer to limit its liability under the **Attachment C - Draft Contract** (as Amended).
- 6.1.3 The Tenderer is required to demonstrate its ability to efficiently and effectively provide the Goods and/or Services. Tenders that fail to meet this requirement, or are incomplete, or fail to satisfy any particular criterion specified in this RFT or are clearly not competitive, may be excluded from consideration at any time during the evaluation process at CSIRO's absolute discretion. However, CSIRO may still consider such Tenders and seek clarification under clause 5.7, Unintentional Errors of Form.
- 6.1.4 Tenderers should note that notwithstanding anything done pursuant to clause 4.7, Rights of CSIRO, CSIRO intends to select the Preferred Tenderer/s primarily on the basis of the written Tenders submitted. Accordingly, Tenderers are encouraged to submit their best and unconditional offers in the first instance. By submitting its Tender, each Tenderer acknowledges that CSIRO will be relying on all of the information contained in, and all of the representations made in, such Tender and any subsequent written and/or verbal referee reports or clarifications of that Tender, for the purposes of evaluating the Tender against the evaluation criteria.

### 6.2 Tender Response Schedules

- 6.2.1 The Tenderer is to provide a written response to the RFT requirements in accordance with the requirements set out in the **Attachment B - TRS** (Tender Response Schedules).

### 6.3 Use of Information in the Evaluation

- 6.3.1 The Tenderer's written Tender response to the requirements set out in **Attachment B - TRS** (Tender Response Schedules) to this RFT will be used by the Tender Evaluation Panel to evaluate Tenderers against the evaluation criteria.
- 6.3.2 The Evaluation Panel may also use any relevant information obtained in relation to the Tender (whether from the Tenderer as part of clarification, reference checks, negotiations, presentations or by any other independent inquiry) in the evaluation of responses.

### 6.4 Evaluation Process Overview

- 6.4.1 Tenders will be evaluated to identify overall VFM for CSIRO. This will be assessed by considering the information provided in **Attachment B - TRS** (Tender Response Schedules). To enable a comprehensive and accurate assessment of the Tender against the criteria, Tenderer's should provide comprehensive information addressing the details in the format set out in **Attachment B - TRS** (Tender Response Schedules).
- 6.4.2 CSIRO reserves the right, in its absolute discretion, to conduct progressive short-listing to reduce the number of Tenders to be evaluated. Progressive short-listing may occur on the basis of the following:



- a. where a conflict of interest exists or is perceived to exist
- b. where the Tender demonstrates a low level of compliance with the Evaluation Criteria, the Attachment C – Draft Contract and the Conditions of Tender as set out in this RFT
- c. where there is lack of experience in providing Goods and/or Services of a similar nature
- d. insufficient evidence of demonstrated capability to efficiently and effectively manage and provide the Services and/or source and deliver the required Goods
- e. an adverse or insufficient financial capability assessment of the Tenderer
- f. the Tender is demonstrably not viable based on the tendered pricing.

6.4.3 CSIRO may at any stage during the evaluation process reach the view that a Tenderer or Tenderers fall within any of the categories listed above.

## 6.5 Exclusion from Evaluation

6.5.1 Tenderers will be assessed to ensure compliance to, clauses 5.1, 5.2 and 5.5. Subject to clauses 5.6 and 5.7, Tenderers who are non-compliant with these clauses will not be included in the evaluation.

## 6.6 Value for Money

6.6.1 Tenders will be assessed in accordance with the evaluation criteria to determine which Tenderer/s provides CSIRO with the best VFM.

6.6.2 In evaluating Tenderer's responses, CSIRO will have regard to:

- a. each of the specific evaluation criteria identified in the table below
- b. the overall VFM proposition presented in the Tenderer's Response.

6.6.3 In this context, 'VFM' is a measurement of benefits represented by a Tenderer's Response, including:

- a. fitness for purpose
- b. performance history
- c. risk
- d. whole of life costs
- e. continuous improvement.
- f. Broader benefits to the Australian Economy.

6.6.4 VFM will be assessed on a 'whole of life' basis (including, where relevant, the transitioning-in, the Contract term and the transitioning-out phases of the relationship between CSIRO and a Tenderer), with a view to long-term sustainability of the VFM proposition - and with a focus on ensuring that VFM outcomes are promoted and protected following the conclusion of any Contract that may result from this RFT.

## 6.7 Evaluation Criteria

6.7.1 In evaluating the Tenders, may assign a particular weighting to any, all or none of the criteria specified in the table below. CSIRO may use material tendered in response to one evaluation criteria in the evaluation of other evaluation criteria.

6.7.2 Tenderers should ensure that they provide all required information in their Tenders to fulfil each evaluation criteria below by way of completing **Attachment B - TRS** (Tender Response Schedules) of this RFT.

- 6.7.3 Tenders will be evaluated against the following evaluation criteria, which are listed below in order of relative importance.

| EVALUATION CRITERIA |                                                                                         |
|---------------------|-----------------------------------------------------------------------------------------|
| <b>1.</b>           | <b>Capability and Experience (Weighted Criteria)</b>                                    |
| 1.1                 | Relevant knowledge and experience in the industry of the Organisation and its Personnel |
| 1.2                 | Capability against Statement of Requirement                                             |
| 1.3                 | Capability and experience of proposed personnel                                         |
| <b>2.</b>           | <b>Capacity (Weighted Criteria)</b>                                                     |
| 2.1                 | Organisation capacity                                                                   |
| 2.2                 | Proposed Subcontractors                                                                 |
| 2.3                 | Capability to deliver on commitments                                                    |
| <b>3.</b>           | <b>Quality Management (Weighted Criteria)</b>                                           |
| 3.1                 | Quality Management System                                                               |
| 3.2                 | Work Health and Safety Management Plan                                                  |
| 3.3                 | Environmental Policies/Management Plan                                                  |
| <b>4.</b>           | <b>Compliance (Non-Technical)</b>                                                       |
| 4.1                 | Corporate structure                                                                     |
| 4.2                 | Financial and corporate viability                                                       |
| 4.3                 | Compliance with the Draft Contract                                                      |
| 4.4                 | Compliance with the Deed of Confidentiality DSO Affiliate                               |
| <b>5.</b>           | <b>Pricing (Non-Technical)</b>                                                          |
| 5.1                 | Details of Fees                                                                         |
| 5.2                 | Fees for additional services/Transition In                                              |
| 5.3                 | Incentives/Discounts                                                                    |

## 6.8 Evaluation Stages

- 6.8.1 The Tender evaluation process will be divided into the following phases:
- Phase 1: Receipt and Registration of Responses
  - Phase 2: Screening of Responses
  - Phase 3: Detailed Evaluation
  - Phase 4: Clarifications and Investigations
  - Phase 5: Evaluation of VFM and Risk

- f. Phase 6: Tender Evaluation Report
- g. Phase 7: Contract Negotiations
- h. Phase 8: Contract Finalisation.

6.8.2 Tenderers may be short listed at any time during the evaluation.

## 6.9 Clarifications

- 6.9.1 As part of, and in addition to the evaluation process in Phase 4, CSIRO may require clarifications and/or presentations from Tenderers at any time during the evaluation process. Should such presentations be required, dates, times and venues for presentations will be notified to all Tenderers participating in the evaluation or the shortlisted Tenderers from the evaluation process. A list of areas and issues for Tenderers to address will be provided prior to the presentations.
- 6.9.2 In the event that clarification of a lodged Tender is required, Tenderers may be required to courier or security post the clarification, originals of the signature and/or initialled pages to CSIRO addressed to the CSIRO Contact Officer at the address specified. In this event, CSIRO will contact the Tenderer to advise what clarifications are required and the lodgement process (including the address and any specific requirements).
- 6.9.3 Any expenses (including time and travel) relating to Tenderer clarifications and presentations will be met by the Tenderer. CSIRO may require any presentation be conducted using video-conferencing facilities.

## 6.10 Reference Checks and Further Information

- 6.10.1 As part of, and in addition to the evaluation process in Phase 4, CSIRO may at any time during the evaluation process conduct reference checks (including site visits, if relevant) on Tenderers. Reference checks may be conducted with any referee proposed by the Tenderer in its Tender response or with any other organisation selected by CSIRO at its discretion.
- 6.10.2 CSIRO may also request further information from Tenderers during the evaluation process.

## 6.11 Negotiations with Tenderers

- 6.11.1 CSIRO may engage in discussion with one or more Tenderers for the purpose of clarifying its Tender response. Where information of a material nature is provided to one Tenderer, it will also be provided concurrently to all other Tenderers (on a non-attributable basis) who are currently participating in the evaluation process.
- 6.11.2 CSIRO reserves the right to, at any time conduct post-tender negotiations with any or all of the Tenderers on any aspect of their Tender. This may involve conducting parallel negotiations with several Tenderers. These post-tender negotiations may result in changes to the terms of the Draft Agreement.
- 6.11.3 CSIRO may evaluate a Tenderer/s as being a 'Preferred Tenderer'. If so, CSIRO may then enter into Contract negotiations with one or more Preferred Tenderers. CSIRO may also, at any time, re-evaluate a Preferred Tenderer as no longer being preferred.

## 6.12 Debriefing

- 6.12.1 Tenderers may request a debriefing following the award of a contract. Tenderers requiring a debriefing should contact the CSIRO Contact Officer.
- 6.12.2 If required, CSIRO will publish the details of the Supplier as a Contract notice on AusTender, if a resultant Contract is awarded.